

1.

CASE #	CASE NAME	HEARING NAME
CVRI2204849	PEREZ-HERRERA VS WANHOO LLC.	MOTION FOR JUDGMENT NOTWITHSTANDING VERDICT
CVRI2204849	PEREZ-HERRERA VS WANHOO LLC.	MOTION FOR NEW TRIAL BY WANHOO LLC.

Tentative Ruling: Appearances required.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2602398	WILSON VS HYUNDAI MOTOR AMERICA.	MOTION TO COMPEL ARBITRATION BY HYUNDAI MOTOR AMERICA.

Tentative Ruling: Defendant Hyundai Motor America's Motion to Compel Arbitration is denied. Defendant is ordered to file responsive pleading within 20 days.

REQUEST FOR JUDICIAL NOTICE

Defendant seeks judicial notice of the Complaint filed in this matter. However, judicial notice is unnecessary because the Court has authority to look through its own file. (See *Davis v. Southern California Edison Company* (2011) 236 Cal.App.4th 619, 632, fn. 11 [judicial notice of document included in appellate record is unnecessary]).

The court must grant the motion to compel arbitration unless it finds either: no written agreement to arbitrate exists; the right to compel arbitration has been waived; grounds exist for revocation of the agreement; or litigation is pending that may render the arbitration unnecessary or create conflicting rulings on common issues. (C.C.P. § 1281.2.) A proceeding to compel arbitration is in essence a suit in equity to compel specific performance of a contract. (*Freeman v. State Farm Mutual Auto Insurance Co.* (1975) 14 Cal.3d 473, 479.)

The motion to compel must set forth the provisions of the written agreement and the arbitration clause verbatim, or such provisions must be attached and incorporated by reference. (C.R.C., Rule 3.1330; see *Condee v. Longwood Mgmt. Corp.* (2001) 88 Cal.App.4th 215, 218–219.) This rule does not require the movant to authenticate the agreement or do anything more than allege its existence and attach a copy. (*Condee, supra*, 88 Cal.App.4th at 218-219.) Once this is done, the burden shifts to the opposing party to demonstrate the falsity of the purported agreement. (*Ibid.*)

Here, Defendant contends that the parties are bound by the arbitration clause contained within its 2022 Owner's Handbook & Warranty Information ("Warranty Handbook"). (Ameripour Decl., Exh. 2 ["Warranty Handbook"].) Specifically, section 3 of the Warranty Handbook sets out a section on "Alternative Dispute Resolution" that describes an arbitration program through the BBB Auto Line provided at no cost. Section 4 of the Warranty Handbook provides, "You must also use BBB AUTO LINE if you are seeking